

Opinion of the Court

Roche, which existed in 1791. See *Captain Roche's Case*, 1 Leach, at 138–139.

Hutchinson is mentioned in connection with *Roche* only after the Fifth Amendment's ratification, and only in a compiler's annotation to the 1800 edition of the *Roche* case report. See 168 Eng. Rep., at 169, n. (a). That annotation in turn cites one case as support for its reading of *Hutchinson*: *Beak v. Thyrrwhit*, 3 Mod. 194, 87 Eng. Rep. 124 (K. B. 1688). But *Beak* did not involve a foreign prosecution; indeed, it did not involve a prosecution at all. It was an admiralty case for trover and conversion of a ship, and—more to the point—*Hutchinson* is discussed only in the defendant's argument in that case, not the court's response. A report relaying the actual decision in *Beak* shows that the court ultimately said nothing about the defendant's *Hutchinson* argument one way or another. See *Beake v. Tyrrell*, 1 Shower, K. B. 6, 89 Eng. Rep. 411 (1688).¹¹ This same defendant's argument was the only source of information about *Hutchinson* on which the Chancellors in *Gage* and *Burrows* explicitly relied, as we noted above. All later accounts of *Hutchinson* seem to stem from this one shallow root.

The last of Gamble's five pre-Fifth Amendment cases, *Rex v. Thomas*, 1 Lev. 118, 83 Eng. Rep. 326 (K. B. 1664), did not even involve a foreign prosecution. The defendant was indicted for murder in England, and he pleaded a prior acquittal by a Welsh court. But Wales was then part of the “kingdom of England”; its laws were “the laws of England and no other.” 1 Blackstone 94–95; see *Thomas*, 1 Lev., at 118, 83 Eng. Rep., at 326–327. So the prior trial in *Thomas* was not under another sovereign's laws, making it totally irrelevant for present purposes.

Summing up the import of the preratification cases on which Gamble's argument rests, we have the following: (1) not a single reported case in which a foreign acquittal or

¹¹ This decision is also reported as *Beake v. Tirrell*, Com. 120, 90 Eng. Rep. 379.